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File No.: EXP202300333

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Terms and scope of the complaint

A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 21/11/2022. The complaint is directed against the BALEARIC YOUTH INSTITUTE (DEPARTMENT OF FAMILIES AND SOCIAL AFFAIRS) with NIF Q0700516H (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states:

- On 17/11/2022, they received a letter sent by the respondent demanding their participation in the “first regional survey on the youth of the Balearic Islands.” The questionnaire included questions regarding: sexual orientation, religious affiliation, political positioning of themselves and their parents, voting intention in the upcoming regional elections, sexually transmitted diseases contracted in recent months, whether they had been diagnosed with depression and if they had received treatment for it, to name a few examples.
- They requested a copy of the survey from the respondent, which has not been provided.
- There is no information regarding the purpose of the data and its processing, considering that they are of special protection.

Along with the complaint, they provide:

- A copy of the letter signed on 8/11/2022, which contains or indicates:
 - Information about the survey and where collaboration is requested, listing their name and surname as the person who must respond, and if they do so online, a username and password are provided along with the address www.enquestajovesilles.com “put this link in the address bar, not in the search engine.”
 - It is part of the “official statistics of the Government of the Balearic Islands” in collaboration with the Councils of the other islands.
 - It indicates that responses can also be given by phone—“an interviewer will call you at your convenience”—for which a phone number is also provided to call or send a WhatsApp “to tell us when you prefer us to call you.” Additionally, another phone number is offered for any clarification or at the email address consulta@enquestajovesilles.com.
 - “At the beginning of the survey, you will see that we ask for a contact phone number in case we need to clarify any issues.”
 - “Remember that the information we will ask for is mandatory communication and is protected by statistical confidentiality, meaning it is strictly confidential and cannot be used for any purpose other than the preparation of the official statistics.”
 - The survey aims to understand the situation, demands, and needs of young people aged 15 to 34 in the Balearic Islands, using the information to facilitate the formulation of youth policies.
 - A copy of screenshots of a WhatsApp conversation held with the respondent regarding the survey, in which the response indicates that “as you can read in the letter” “it is an official statistic and therefore mandatory by law” and an acknowledgment of receipt that certifies the completion of the survey.
- The complainant adds that there is no information indicating the purpose of the data and its processing, “considering that they are of special protection.”

SECOND: Actions taken regarding the complaint. Response of 8/02/2023

In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 13/01/2023, the complaint was forwarded to the BALEARIC YOUTH INSTITUTE, CIF Q0700516H, and to the DEPARTMENT OF SOCIAL AFFAIRS AND SPORTS, CIF S0711001H, to which it was subordinate at the time of the complaint. The transfers made in accordance with the established rules in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were delivered the first on

13/01/2023, and the second was rejected in the DeHÚ (Single Enabled Electronic Address) on 16/01/2023, as stated in the acknowledgment of receipt in the file.

The BALEARIC YOUTH INSTITUTE (IBJOVE), on 8/02/2023, provided the following responses to the request:

1) Provision of the technical reports or recommendations prepared by the Data Protection Officer or by the security officer, regardless of their format, regarding the treatments for which information is requested, as well as the subsequent actions taken or their absence, derived from the aforementioned technical reports or recommendations.

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Furthermore, the nominal identification of the authority or executive responsible for the processing at the time of the issuance of the aforementioned technical reports or recommendations is requested. IBJOVE indicates that the data controller is the BALEARIC YOUTH INSTITUTE, which belongs to the DEPARTMENT OF SOCIAL AFFAIRS AND SPORTS, and identifies its DPO as the entity NUNSYS SA.

It states that on 21/01/2022, a service provision contract was signed by IBJOVE (data controller) with APLICA INVESTIGACIÓ SOCIAL S.L., the awarded company for conducting the Youth Survey of the Balearic Islands, in which the latter agrees to follow the instructions of the controller through a data processing assignment. A copy of the contract is provided.

Copies of service contracts with APLICA INVESTIGACIÓ SOCIAL SL dated 21/01/2022 are also provided, broken down as follows:

- Lot 1 contract: fieldwork and processing of the collected data, as well as the analysis and diagnosis of the data and the drafting of the analysis in relation to the main youth indicators and previous youth studies for conducting the Youth Survey of the Balearic Islands, and
- Lot 2: Exploitation, analysis, and interpretation of the data from the service tender to carry out the fieldwork and processing of the collected data, as well as the analysis and diagnosis of the data and the drafting of the analysis in relation to the main youth indicators and previous youth studies for conducting the youth survey in the Balearic Islands, which would include the exploitation, analysis, and interpretation of the statistical data obtained in the fieldwork resulting from Lot 1 of this tender and the drafting of the conclusions.

The object of the contract is stated as “to understand the living conditions of young people in the Balearic Islands and the transition processes to adulthood in order to obtain relevant, reliable, and updated information to guide youth policies and improve the quality of life of the youth of the islands through the conduct of the Youth Survey in the Balearic Islands.”

In clause 12, the contractor is imposed the obligation to maintain professional secrecy regarding personal information to which they may have access as a result of the execution of the contract. IBJOVE states that “throughout the month of April 2022, IBJOVE was consulting with the DPO of the entity regarding the measures to be adopted to ensure the protection of personal data before launching the survey, and the DPO provided appropriate responses to the IBJOVE department that was working on the survey, both regarding the security measures to be adopted for sending the database of the respondents to the surveying company, as well as regarding the text of the survey and compliance with the duty of information.”

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It is stated that on 04/05/2022, IBJOVE sent the informative clause to the company APLICA for its inclusion in the survey, and due to an error by APLICA, this informative clause was not included in the survey, although a table indicating the applicable legislation was included, to comply with the legal

obligation established in the Statistics Law of the Balearic Islands (attached screenshot indicating Information subject to statistical secrecy, indicating LAW 3/2002 OF 17/05 ON STATISTICS OF THE BALEARIC ISLANDS, (LEIB), the GDPR, and the LOPDGDD).

In the copy of the DATA PROCESSING AGREEMENT provided, it states:

- in the object of the contract, in addition to what has already been indicated, it is added that “the processing of personal data” will include the following aspects: “Collection, registration, structuring, modification, conservation, extraction, consultation, communication, dissemination, interconnection, confrontation, imitation, suppression, destruction, conservation, and communication.”
- in clause two, “identification of the affected information: For the execution of the services derived from the fulfillment of the object of this contract, the data controller authorizes the processor to process the necessary information, which includes: name and surname, ID number, phone numbers, email, without prejudice to other data.”
- in clause 4.2: “The processor will process the data in accordance with the instructions of the data controller.”
- in clause 4.10, the assistance of the processor to the controller in responding to the exercise of rights, and in 4.11 “right to information,” which “corresponds to the controller to provide the right to information at the time of data collection.”

2) The decision made regarding this complaint.

The need to review with the awarded suppliers the complete text of the surveys before their launch has been defined.

3) Report on the causes that led to the incident that originated the complaint.

IBJOVE states that the incident was due to a specific error by the data processor, for not including the text. They provide a copy of an apology email to one of the IBJOVE officials from the processor. In the copy of the email as a transcription, it is an email dated 25/01/2023 (a date after the transfer made by the AEPD of this complaint to IBJOVE) addressed to several email addresses of IBJOVE, from APLICIA, in which it is stated:

“xxxx (...), this clause as such was not included in the form. In the letter and at the beginning of the survey, data protection and the statistical secrecy that protected the person responding to the questionnaire were mentioned, but this specific text is not included,” “I suppose that the fact that that email from May was much earlier than the start of the fieldwork meant that in the thousand reviews we did together we did not remember that this text had to be included.”

A transcription preceding that response is also provided as a query from IBJOVE specifying the complaint of a respondent to the AEPD and asking whether the informative clause sent in an email on 04/05/2022 was included with the title of the document:

RGPD_Cláusula_Simple_INSTITUT_BALEAR_DE_LA_jOVENTUT.pdf

In another email, dated 04/05/2022 from IBJOVE to the processor, it begins: “I am sending you the response regarding the final query of the draft questionnaire related to the use of personal data. The response is from the company that handles data protection for IBJOVE.”

In that email, neither the possible document nor attachment that is said to have been sent is seen or provided.

IBJOVE does provide a copy of the “approved and disseminated informative clause,” in the following terms:

“BASIC INFORMATION ON DATA PROTECTION The data controller is INSTITUT BALEAR DE LA JOVENTUT (IBJOVE). The purpose of the processing is to conduct a survey of the youth of the Balearic Islands. The legal basis for the processing is based on the public interest of the consultation, survey, and study. Personal data will be retained as long as the link with the entity is maintained or for the necessary years to comply with legal obligations. Your data will not be transferred to third parties, except as required by law. No international data transfers will be carried out. You may exercise your rights of access, rectification, deletion, opposition, as well as other rights developed in the GDPR as explained in the additional information on our website <http://infojove.caib.es> or c/ de...”

4) Report on the measures adopted to prevent similar incidents from occurring, implementation dates,

and controls carried out to verify their effectiveness.

It is stated that “the duty of information had already been addressed in the data processing agreement, which we attach, signed with the awarded company, and that this company had committed to comply, as well as to comply with all the instructions of the DATA CONTROLLER.”

It reiterates that: “The need to review with the awarded suppliers the complete text of the surveys immediately before their launch has been assumed.”

5) Any other information deemed relevant.

Regarding the reference made by the complainant to the “legal obligation to respond to the survey,” as well as the request for a copy of it and the subsequent anonymization of the data, they state:

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1. Regarding the obligation, the LEIB regulates in Chapter III (articles 14 to 16) the obligation to provide information. Thus, article 14 defines which statistics are mandatory, while article 15 clarifies who is required to provide information.

On the other hand, the planning of statistical activity is established in Chapter I of Title II related to the regulation of this activity. Thus, point 1 of article 18 establishes that the STATISTICAL PLAN OF THE ILLES BALEARS must be developed through ANNUAL STATISTICAL PROGRAMS, which must be approved by agreement of the Government Council, at the proposal of the head of the department to which the Institute of Statistics of the Illes Balears is attached.

“The statistical operation of the Youth Survey of the Illes Balears was integrated into the ANNUAL STATISTICAL PROGRAM 2021, which was approved by Agreement of the Government Council on 17/05/2021, in development of the Statistical Plan of the Illes Balears 2018-2021, and published in the BOIB No. 64 of 18/05/2021.

It was again included in the Agreement of the Government Council of 16/05/2022, which approves the Annual Statistical Program 2022 in deployment of the Statistical Plan of the Illes Balears 2018-2021, extended. Published in the BOIB No. 65 of 19/05/2022.

However, despite the obligation, the common practice is that if someone refuses to answer, they are replaced by the substitute person who makes up the sample provided by IBESTAT (Institute of Statistics of the Illes Balears).” It adds that the letter makes the obligation clear because it states that “the information we are requesting is mandatory communication.”

2. Regarding the request for the transcription of the survey to the claimant, it is not common practice to provide it, whether it has been conducted by phone or electronically. The claimant is sufficiently informed that the statistics are strictly confidential and that the sole purpose of the survey is to prepare an official statistic.

At the end of the survey, the following was communicated: “We have finished the interview and we greatly appreciate your collaboration. Once we have analyzed the data, we will prepare a report on the situation of youth. Without any commitment and guaranteeing the confidentiality of the data, would you provide us with a contact to carry out a subsequent control of the survey and to send you a link to the report?

Email

Phone”

“The participant is asked for an email address, if they are interested, to send them a link to the final report of the statistics, as we mentioned before, already anonymized; in no case is it informed that the text with their responses will be provided, which is what the claimant seems to have understood.”

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3. Regarding the claimant's question about anonymization, they have been sufficiently informed in the letter that in no case are the responses used in an individual manner, only in an aggregated way and for the preparation of the official statistics of the Youth Survey. Once the statistics are prepared, the data is completely anonymized, making it impossible to determine what personal data lies behind each of the percentages.

THIRD: Admission to processing notified

On 21/02/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: Preliminary investigation actions (API)

The General Subdirectorate of Data Inspection proceeded to carry out API AI/00163/2023 to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following details:

1) On 20/06/2023, the following documentation obtained from the website of the Balearic Institute of Youth was incorporated into the inspection proceedings, in the section on "privacy policy."

"Specific information regarding the processing of personal data: The personal data provided by citizens through the various forms or requests on this website will be processed in accordance with the terms set forth in the 'Information on the processing of personal data' that appears in the corresponding form and request, where the data controller will also be identified.

o Exercise of rights and complaints: The person affected by the processing of personal data may exercise their rights to information, access, rectification, deletion, limitation, portability, opposition, and non-inclusion in automated processing (and, even, to withdraw their consent, where applicable, under the terms established by the GDPR) before the data controller, through the procedure 'Request for exercise of rights regarding personal data protection,' provided in the Electronic Headquarters of the CAIB (Electronic Headquarters). Following the response from the controller or in the event that there is no response within a month, they may submit the 'Claim for protection of rights' to the Spanish Agency for Data Protection (AEPD).

o Data Protection Delegation: The Data Protection Delegation of the CAIB Administration is located at ... The contact email address is protecciodades@dpd.caib.es."

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2) On the dates 16 and 26/10/2023, the following request for information was sent to the BALEARIC INSTITUTE OF YOUTH and the DEPARTMENT OF SOCIAL AFFAIRS AND SPORTS.

2.1.- Documentation evidencing the relationship of the Balearic Institute of Youth with the Department of Social Affairs and Sports.

On 31/10/2023, the IBOVE responded that "in accordance with Decree 33/2023 of May 26, approving the statutes (published in the BOIB, no. 70, of May 27, 2023), it is configured as a public business entity as provided in article 2.1. b) of Law 7/2010, of July 21, on the Instrumental Public Sector of the Autonomous Community of the Balearic Islands, with its own and differentiated legal personality, and with full capacity to act and management autonomy, without prejudice to the supervisory relationship of the Administration of the Autonomous Community, as established in article 15, section 2, of Law 5/2022, of July 8, on Youth Policies of the Balearic Islands."

Since Decree 12/2023 of 10/07 by the President of the Balearic Islands, which establishes the competencies and the new basic organizational structure of the Departments of the Administration of the Autonomous Community of the Balearic Islands, modified by Decree 16/2023 of 20/07 and by Decree 17/2023 of 24/08, in the new structure, the IBOVE is assigned to the Department of Families and Social Affairs."

The responding Department is that of "Families and Social Affairs," which on 6/11/2023 states that the entity responsible for processing the survey conducted to understand the living conditions of young

people in the Balearic Islands is the IBOVE, "since it is responsible for determining the purposes and means of the processing," which directly carried out the survey with the collaboration of IBESTAT and the Island Councils in view of their own competencies on the matter. The Department "did not participate in the preparation of the survey, nor in its execution."

2.2.- Documentation evidencing the reason for conducting the survey. Include relevant regulations. Inform whether the Department was responsible for defining the questionnaire or indicate which organizations defined/included questions in the survey, specifying the relationship they maintain with the Balearic Institute of Youth or the Department of Social Affairs and Sports.

On 31/10/2023, the IBOVE responds that it is stipulated in the "Law 5/2022, of July 8, on youth policies of the Balearic Islands, which establishes in point 2 of article 44 regarding statistics and studies of the autonomous community of the Balearic Islands: 'The statistical planning of the Autonomous Community of the Balearic Islands must incorporate the preparation of the Youth Survey of the Balearic Islands with a maximum frequency of five years, under the responsibility of the IBOVE.'

"The statistical operation called: 'Youth Survey of the Balearic Islands' appeared in the Agreement of the Government Council of May 17, 2021, by which the Annual Statistics Program 2021 is approved in development of the Statistics Plan of the Balearic Islands 2018-2021."

ANNEX 3 of said Agreement includes the list of operations of the Annual Statistics Program 2021 and regarding the Youth Survey indicates, among other aspects:

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- "Objective and purposes: To understand the living conditions of young people in the Balearic Islands and the transition processes into adulthood in order to obtain relevant, reliable, and updated information to guide youth policies and improve the quality of life of the youth population or group."

- "Main variables: Related to the transition of young people's lives (education, work, housing, and family), and comprehensive information about young people's lives (health, participation, leisure, and language). Disaggregation by sex."

- "Participating bodies: IBESTAT"

- "Obligation to collaborate:"

- "Type of activity: Experimental"

It is reiterated that the Youth Survey of the Balearic Islands is maintained in the Agreement of the Government Council of 16/05/2022, by which the Annual Statistics Program 2022 is approved in development of the Statistics Plan of the Balearic Islands 2018-2021 extended, (BOIB 19/05/2022).

"To ensure the implementation of the Youth Survey with maximum efficiency, a collaboration agreement was signed between IBOVE and the Institute of Statistics of the Balearic Islands (hereinafter, IBESTAT), with the aim of establishing the lines of cooperation for the execution of the statistical operation, as well as its subsequent dissemination." A copy is provided as attached document No. 1.

In the Agreement signed on 12/02/2021 for the implementation of the youth survey in the Balearic Islands, which has a duration of 4 years, it is worth highlighting:

- The Statute of Autonomy of the Balearic Islands in Organic Law 1/2007 of 28/02, establishes in article 30.32 the exclusive competence of the Community over statistics of regional interest, as well as the organization in its own statistical system, a competence that has been developed from the LEIB, as well as through the PLANS AND PROGRAMS that develop it approved by DECREE AND AGREEMENT OF THE GOVERNMENT COUNCIL RESPECTIVELY.

Article 20.13 of the Statute of Autonomy establishes that the Autonomous Community of the Balearic Islands has exclusive competencies in the design and application of policies, plans, and programs aimed at youth. Article 8 of Law 10/2006 of 26/07, comprehensive of Youth in the Balearic Islands includes among the competencies of the administration of the Autonomous Community of the Balearic Islands the completion of studies, research, and publications, congresses, training plans for

professionals, and experimental programs for Youth and in general everything that is of interest that contributes to the comprehensive training of young people or that serves to understand youth reality in collaboration, if necessary, with the competent entities and administrations.

Article 2 of Decree 32/2006 of 31/03, which regulates IBOVE, establishes that among its objectives is the execution and promotion of programs and activities for children and young people that by their specific nature fall within the jurisdiction of the Autonomous Administration. Within the organizational structure of IBOVE, the program "Youth Observatory" is developed, which has among its purposes to promote and collaborate in the development of social research on youth, thus constituting within this context the Youth of the Balearic Islands.

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"For all of the above, it is necessary for" both entities "to establish mechanisms so that the regional statistical institute can collaborate in the design, monitoring, and review of the execution of this statistical operation, as well as in the exploitation and dissemination of the data obtained from the capabilities and experiences that each of the signing parties can contribute to make it possible."

In the actions (third clause of the Agreement), it is indicated that it is the responsibility of IBOVE, among others, to "develop and design the questionnaires, contract the company that will carry out the fieldwork, guarantee quality control in all phases of it, while IBESTAT will advise on the design of the questionnaire prepared by IBOVE, the definition of the methodology, the processes, and the data collection instruments of the survey, in accordance with IBOVE. As a common task, they are responsible for jointly supervising the fieldwork, as well as validating and refining the data, using the criteria agreed upon by both parties."

Clause eleven refers to "data protection." It is indicated that "both parties, as responsible for carrying out the object of the agreement, commit to treating the information obtained during its execution confidentially, as well as preserving statistical secrecy, not using it for any purpose other than that derived from this agreement."

For this purpose, documents regarding the transfer of data and the corresponding responsibility for preserving statistical secrecy will be signed. The company awarded the fieldwork, as well as its involved agents, must also sign the confidentiality and statistical secrecy document. The data subject to processing related to this Agreement will be considered reserved and secret."

On the other hand, IBOVE informs that "On February 12, 2021, the Inter-Island Technical Commission for the monitoring of the Youth Survey of the Balearic Islands (CSEJIB) was established, a Commission formed by technical personnel in youth matters from each of the participating Institutions: the four island councils and IBOVE. The CSEJIB met via video conference 18 times between February 12 and July 13, 2021, to develop a proposed questionnaire that would meet the survey's objective and take into account the island's peculiarities. For its preparation, a bibliographic review was carried out, consulting, among others, the studies, surveys, and sources" that detail.

Once the proposed questionnaire was developed, the CSEJIB deemed it essential to carry out a participation process to gather contributions from other youth technicians, as well as from specialist technicians in the different areas addressed, to whom the questions of the questionnaire related to their sector were sent with the intention of improving the proposal by allowing them to review the appropriateness of the questions, eliminate the unnecessary ones, and adjust their wording and content to enable comparability and harmonization with other surveys.

After collecting the contributions and based on the final proposal developed by the Inter-Island Technical Commission for the monitoring of the Youth Survey of the Balearic Islands, the technical personnel of IBOVE finalized the questionnaire, as indicated in the technical specifications of the bidding, with the company awarded the fieldwork: APLICA INVESTIGACIÓN SOCIAL and with the advice of IBESTAT.

2.3.- Procedure for selecting candidates to complete the survey.

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In relation to the extraction of the sample, it has been extracted from the housing framework, constructed based on the information from the municipal register of inhabitants as of the reference date 01/01/2022.

The sample size has been designed to consist of 3,000 surveys based on the availability of certain resources and territorial representativeness for the four islands.

For each of the 3,000 surveys to be conducted, 3 young individuals have been established as substitutes with a predetermined order extracted randomly. It is important to mention that the substitute sample is only used if the primary respondent refuses to be surveyed or is unreachable.

2.4.- Origin of the data and the procedure for sending the documents communicating the survey to potential participants. Include the number of selected candidates and the final number of participants. It is noted that this has been explained in the previous section. It adds that section 3 of the technical specifications (ppt) governing the contracting of the awarded company outlines the procedures for conducting the survey, and that this was followed as the survey procedure.

In section 3 of the technical specifications (ppt) governing the contracting of the awarded company, APLICA INVESTIGACIÓN SOCIAL S.L., it is specified, as stated by IBOVE:

Contact and survey procedure.

- Up to two letters will be sent to each person to be interviewed, whether primary or substitute.
- The letter will provide an exclusive phone number for the Survey and an email address for contact: encuestajuventud@ibjove.net for inquiries.
- The Institute will provide the base text of the letter and the list of individuals to whom it will be sent, as well as their postal addresses.
- The awarded company will generate the final letters (and the personalized usernames and passwords that will be included in the letter text for primary respondents).
- For primary respondents, the first letter will be sent at the start of the fieldwork and will include a personalized email address, username, and password to complete the survey online. After ten days, all individuals who have not completed the online survey will be contacted by phone and asked to choose their preferred method.

A minimum of five calls will be made on different days and times.

Once these calls have been made, a second letter will be sent to all individuals who could not be contacted by phone.

After another ten days, the replacement of this individual will proceed.

This procedure will also apply to substitute individuals.

In case of refusal to respond from the person to be interviewed, the substitute person may be contacted before the aforementioned ten days have elapsed.

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In the section on substitution criteria, the calls to the phones of the person to be interviewed on different days and time slots are detailed, including the possibility of calling during the weekend.

Methodology, section 3.4:

- The survey method will be multichannel: computer-assisted telephone interview (CATI) and computer-assisted web interview (CAWI). IBOVE adds that “However, once it is confirmed that there is a high number of registered individuals who no longer live at the address where they are registered but have not deregistered, making them impossible to locate, it was decided to enhance a field team to personally visit all individuals in the sample to verify whether they lived or not at the address where

they were registered. Ultimately, nearly 10,000 visits were made across the four islands.”

- The average expected duration of the interview will be thirty-five minutes. (3.4 ppt)
- The survey will be conducted during the following months after the fieldwork, and no later than 23/05/2022. The coding and recording of data and the delivery of the microdata file to the Institute will be completed by the maximum date of 30/06/2022. The delivery of the remaining materials will be completed by a maximum of 15/09/2022.

Interviews will be conducted at times and days suitable for the different profiles of the selected individuals, which may involve conducting interviews at night and on weekends or holidays.

Interviewed individuals will be informed of the possibility that they may be required for verification of the interview completion.

The questionnaires will include the identity of the interviewer, the date and time of the interview, and any other information that facilitates the supervision of the work performed. (3.6 ppt).

- The individuals responsible for executing the contract on behalf of the Institute will have access to verify the content of 100% of the interviews as fieldwork is conducted. (3.7 ppt).
- “The awarded company will have to obtain the phone numbers of the individuals to be interviewed included in the sample, as stated in section 3.9 “List of phones.”

Regarding the legal basis for this processing to be carried out by the processor on behalf of the controller, no details have been provided.

IBJOVE states that “The fieldwork corresponding to the Youth Survey of the Balearic Islands began on July 22, 2022, with the sending of 3,000 certified letters to the primary individuals in the sample and was concluded on January 20, 2023.”

- The interviews were conducted through multichannel: online (CAWI) and telephone (CATI).

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2.5.- Categories of data requested indicating the reason for requesting data on politics, health, religion, and sexual orientation. Include form.

IBJOVE states that “the final questionnaire of the Youth Survey of the Balearic Islands includes 127 questions distributed across 10 thematic areas or blocks, which are detailed,” among which are 8) “participation and politics,” and 9) “Health, sexuality, and lifestyles.”

It states that it provides attached document 3, the questionnaire, and notes that these two blocks 8 and 9 were left for the end of the questionnaire, clearly indicating the conclusion of the mandatory response questions and the voluntary nature of the following ones due to the topics they address, in accordance with current legislation.

It provides a printout of the information regarding “the end of the mandatory response questions” and continues: “The ones we will ask now, in accordance with current legislation, are voluntary due to the topics they address, but they are necessary to obtain information to improve actions directed at youth. We remind you that your responses are completely anonymous and will not be used individually and are fully protected by statistical confidentiality.”

Regarding the questionnaire, it is viewed from the provided copy (47 pages) divided into blocks, with 157 questions, appearing on the first page in the left margin “individual questionnaire” - “questionnaire number” and “person number.”

Before the aforementioned blocks 8 and 9, there are questions such as whether in the last 12 months they have had to request assistance or sell items.

The question number of some, as samples, are reproduced below:

- 111 - whether they consider acts of violence or not, questions such as “forcing to maintain sexual relations,” “getting angry or not respecting when someone says no to something,” or in 112, opinions about immigrant persons.

The block “participation and politics” begins at question 115. For example, it asks whether they currently participate, collaborate, or are members of any association or informal group, asking how

many, political party or union, religious group or entity, Student Union, student organization or assembly, other social movements or entities for social and political advocacy.

- 116, "How do you collaborate or participate?" with different responses such as occasional, financial, active member, organizer, or responsible.
- 117, it asks whether, for example, in the last 12 months they have attended meetings or political events.
- 118, "Where would you say you consider yourself from?" with responses such as: "From my island, From the Balearic Islands, from Spain, I don't care."
- 119, "Regardless of how it is currently, how would you like the relationship between the Balearic Islands and Spain to be?: to have less autonomy for the Balearic Islands regarding Spain, more than it currently has, should maintain the current relationship."
- 120, "If you are interested in politics, a lot, quite a bit, a little."
- 121, "How do you consider democracy functions in Spain?"

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- 122, ideological self-publication, when discussing politics. In which of the boxes would you place yourself more to the right or more to the left, also regarding parent 1 and parent 2 who may correspond to father/mother/guardian (in question 123 124).
- 125, to respond to questions such as whether you agree or not and to what extent with the legalization of cannabis, the regulation of prostitution, or the youth vote starting at 16 years old.
- 126, in the last elections to the Parliament in May 2019, what did you do? if you voted and if you could not vote four responses and in the next question, which party or coalition would you vote for now if there were elections and you could vote?, listing the options of various parties, political coalitions.
- 128 to "how do you consider yourself in terms of religion?", and 128 b "what religion?" Starting from question 130, the section on "sexuality, health, and lifestyles" begins, providing examples of the following questions:
- 133, if you have taken any medication in the last 12 months to treat depression or anxiety by medical prescription.
- 134 if in the last 12 months you have had to see a psychologist.
- 137, "can you tell us what your diet is like?" including options of I am vegetarian, I am vegan, I eat everything.
- 141, "how often do you engage in activities such as drinking alcohol, smoking joints, smoking tobacco, driving after drinking, or going in a car if the person driving has been drinking?"
- 142, which follows 141, indicates "can you tell us what gender you identify with? woman or man, non-binary or other, I don't know" and 142 "can you tell us what your sexual orientation is?"
- 147 "have you ever become pregnant unintentionally?"
- 148 "have you ever had an abortion?"
- 151, regarding consensual or non-consensual sexual relationships.
- 152 "how often do you watch pornography?"

IBJOVE states "Regarding the reason for requesting data on politics, health, religion, and sexual orientation, it is worth noting what was mentioned in the response to point 2 of this requirement related, on the one hand, to the Agreement of the Government Council of May 17, 2021, which approves the Annual Statistical Program 2021 in development of the Statistical Plan of the Balearic Islands 2018-2021, and whose annex 3 provides the following information regarding the main variables of the Survey: "Related to the transition of young people's lives (education, work, housing, and family), and comprehensive information about young people's lives (health, participation, leisure, and language). Disaggregation by sex.

And on the other hand, to indicate that the Inter-Island Technical Commission for monitoring the Youth Survey of the Balearic Islands (CSEJIB), as indicated in point 2 of this document, carried out a bibliographic review, consulting, among others, the studies, surveys, and sources detailed, where it

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The themes addressed by the Youth Survey of the Balearic Islands are the usual themes of surveys whose mission is to understand the reality of this group in order to formulate more appropriate youth policies that contribute to improving the living conditions of young people.

2.6.- Standards developed by the DPD regarding the conduct of surveys to ensure the anonymity of participants' data.

IBJOVE indicated that "NUNSYS, SA" is the external company appointed as the Data Protection Delegate (DPD) by the Balearic Youth Institute.

2.7.- Documentation evidencing the data collection procedure for the survey, including the procedure for anonymizing personal data and custody.

IBJOVE noted that "The data collection procedure for the Youth Survey of the Balearic Islands was carried out using a mixed methodology combining two methods: online survey (CAWI) and telephone survey (CATI), in both cases assisted by computer. Through the CAWI method, the respondent accesses a webpage where they can answer the survey. On the other hand, the survey could also be answered by telephone (CATI method). The website that collects users' responses is hosted on a secure server, with SSL certification and HTTPS encryption."

It provides a screenshot showing the start of the survey where a welcome message is displayed, and the user must click next, indicating that they are asked to enter their access data, specifically: username and password, with a warning at the bottom that at any time you can close the browser and resume the survey from where you left off.

IBJOVE states that: "On the other hand, to conduct a CATI survey, the individual's phone number is required, which was not provided by IBESTAT or IBJOVE, although a good number of contact numbers were found from the White Pages database of Telefónica, which were not sufficient to guarantee the representativeness of the sample. Considering that for the fieldwork we only had the 2022 census data provided by the Institute of Statistics of the Balearic Islands (IBESTAT) referring to the postal addresses of the individuals that made up the sample."

The process of anonymizing personal data followed the following protocols:

- o A unique code was assigned to each individual in the sample.
- o All information sent to the client included only the assigned code; neither name, nor phone number, nor email, nor postal address, nor any identifying data that would allow associating an individual with a code.
- o The final database did not include any personal data, only the unique code, whose connection to the personal data of the respondents was never available to the final client.
- o All participants in the study signed a document of 'Confidentiality Agreement - Individual Declaration' for access to microdata, being subject to the provisions related to statistical secrecy and data protection."

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to the extent that they may affect it, as determined by Law 3/2002, on statistics of the Balearic Islands, State Law 12/1989, on the public statistical function, as well as Organic Law 3/2018, of 5/12, on the Protection of Personal Data and Guarantee of Digital Rights, and in the corresponding regulatory provisions that implement it.

Twelve months after the completion of the fieldwork, it is stipulated, by contract, to destroy the database that connects individuals from the sample and unique code unless the client requests a variation in this protocol."

2.8.- Copy of the contacts and complaints from the complainant, and responses issued if applicable, regarding their participation in the survey.

The IBJOVE states that a certified letter was sent to the complainant, providing the same copy as that of the complainant, without indicating when it was signed, adding that a visit was made to their home without finding them, interviewing their mother who commented that she would inform her son, receiving on 14/11/2022 a WhatsApp from the complainant (providing a printed screenshot showing that date and the conversation indicating the name of the complainant). On 15/11, the complainant responded to the survey through the provided link, noting at the end in the observations section that "Very personal questions are asked and there is no explanation of the data processing. I consider this survey very personal and that it should not be mandatory."

FIFTH: Agreement to initiate

On 19/02/2024, the Director of the AEPD agreed:

"TO INITIATE SANCTIONING PROCEDURE against the INSTITUTO BALEAR DE LA JUVENTUD (MINISTRY OF FAMILIES AND SOCIAL AFFAIRS), with NIF Q0700516H, for the alleged infringement of the GDPR in its articles:

-9.1 of the GDPR, in accordance with article 83.5 a) of the GDPR, and for the purposes of prescription classified as very serious in article 72.1.e) of the LOPDGDD.

-13 of the GDPR, in accordance with article 83.5.b) of the GDPR, and for the purposes of prescription classified as very serious in article 72.1.h) of the LOPDGDD."

"Without prejudice to the outcome of the instruction, for the purposes provided in art. 64.2 b) of the LPACAP, the sanction that may correspond for the facts that motivate the initiation of the procedure and its possible qualification would be an administrative fine. However, in accordance with art. 83.7 of the GDPR, and the provisions of art. 77.2 of the LOPDGDD, due to the category of the allegedly responsible subject for the infringement, such sanction would be replaced by the declaration of each of the infringements."

SIXTH: Notification of the agreement

The initiation agreement was notified on 20/02/2024, and no allegations were received.

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SEVENTH: On 8/01/2025, a resolution proposal was issued stating:

"That by the Presidency of the Spanish Agency for Data Protection it is declared that the INSTITUTO BALEAR DE LA JUVENTUD, with NIF Q0700516H, has infringed the provisions of articles 9 and 13 of the GDPR, in accordance with the provisions of articles 83.5 a) and 83.5.b) of the GDPR, and classified for the purposes of its prescription as very serious in articles 72.1.e) and 72.1.h) of the LOPDGDD."

In response to this, on 22/01/2025, allegations were received in which IBJOVE states:

1- As part of the personal data processed that are considered necessary for the purpose of the survey are;

- identifying in nature
- specially protected
- of personal characteristics
- of social circumstances

Taking into account the typology of personal data subject to processing, the application of article 9.2.j) of the General Data Protection Regulation (GDPR) is imperative, which establishes that the processing of personal data of special categories is lawful when "it is necessary for the purposes of archiving in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with article 89, paragraph 1, based on Union or Member State law."

Conducting the survey by the competent youth institutions of the Balearic Islands is provided for in their regulations, which does not foresee that

The main purpose of conducting surveys that involve the processing of sensitive data is to obtain results for statistical or research purposes, as required by article 9.2.j): “The processing is not focused on identifying individuals, but on generating knowledge or aggregated patterns of general interest, which meets the criteria established in the article.”

That is to say, the surveys designed by the Instituto Balear de la Juventud (IBJOVE) to evaluate the living conditions of young people in the Autonomous Community may require information about special categories of data such as political ideology, sexual orientation, or health status. This purpose responds to a relevant scientific and social interest.

The collection of data from special categories allows for the identification of inequalities or specific vulnerabilities affecting different groups within the young population. For example:

- Political ideology: It allows for the analysis of how political beliefs influence access to rights, civic participation, or perception of social opportunities.

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- Sexual orientation: It is essential to study the discriminations that LGBTQIA+ youth may face in areas such as employment, education, or access to services.

- Health status: It allows for the evaluation of the impact of socioeconomic factors on the physical and mental well-being of youth, especially in relation to issues such as mental health, which alarmingly affect this population.

- Religion: It allows for the identification of possible discriminations based on religious beliefs that may affect access to education, employment, or public services and to analyze whether there are structural or cultural inequalities related to belonging to specific religious communities, such as the treatment of religious minorities.

This data provides key scientific evidence to understand structural and systemic problems that could go unnoticed without detailed segmentation, and that are collected with a solid and consistent legitimizing basis, without contravening the guiding principles regarding data protection articulated in Article 5 of the GDPR.

It states that to comply with the provisions of Article 89.1 of the GDPR regarding guarantees, the process of pseudonymization of personal data:

- A unique code was assigned to each individual in the sample,
- All information sent to the client included only the assigned code.
- The final database did not include any personal data, only the unique code, whose connection to the personal data of the respondents was never available to the final client.
- All participants in the study signed a confidentiality agreement document for access to the microdata, being subject to the provisions of statistical secrecy.
- After 12 months from the completion of the fieldwork, it is contractually stipulated to destroy the database that connects individuals in the sample and the unique code unless the client requests a variation in this protocol.

It expresses that these measures fall within the framework of the principles of processing established in Article 5.1 of the GDPR.

2- Regarding the duty to inform, it indicates that, since the legitimizing basis for processing is found in Article 9.2.j) of the GDPR, the obligations that this entity holds under Article 13 were covered, but that it was a specific error of the Data Processor that led to the belief that the Balearic Youth Institute (IBJOVE) “did not deliberately intend to inform the interested parties about the processing of their personal data.”

The IBJOVE, aware of its obligations, has acted at all times in compliance with the principle of proactive responsibility, taking all precautions to ensure that the processing of personal data is carried out with all guarantees.

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It notes that it has reworked this clause to clarify aspects that were not clear, providing Annex 1. In it, the following are included:

1. Identity and contact details of the data controller,

“2. Purpose of the processing The personal data collected in our surveys will be processed exclusively for the purposes of:

- Scientific, historical, or statistical research: To generate relevant information through the “Youth Survey of the Balearic Islands” to understand the living conditions of young people in the Balearic Islands and the transition processes into adulthood to obtain relevant, reliable, and updated information to guide youth policies and improve the quality of life of youth.
- Preparation of aggregated reports as a result of the surveys conducted that do not allow for the direct identification of participants.”

3. Categories of personal data processed, including also specially protected data, referring to “ideology, union affiliation, religion or philosophical beliefs, racial or ethnic origin, medical or mental health, sexual orientation.”

4. Legitimizing basis for processing, “the processing of your personal data, including special categories, is carried out based on: Article 6.1.e) of the GDPR Public interest: Our surveys are conducted for purposes that contribute to the knowledge and well-being of society.

Article 9.2.j of the GDPR: The processing is necessary for scientific, historical, or statistical research purposes, in compliance with the provisions of Article 89.1 of the GDPR and applicable national regulations.”

5. Recipients of the Data

Personal data will not be shared with third parties, except in the following cases:

- Contracted service providers who act as data processors under our instructions and guarantee confidentiality.
- Competent authorities, if required by applicable regulations.

In all cases, we guarantee that the data will be processed exclusively for the indicated purposes.

6. Security Measures

To protect your personal data, we implement appropriate technical and organizational measures, such as:

Pseudonymization or anonymization of data, whenever possible.

Restricted access to data only to authorized personnel.

Secure and encrypted storage of personal data.

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7. Data Retention

Personal data will be retained only for as long as necessary to fulfill the purposes described in this policy. Subsequently, they will be anonymized or deleted, unless there is a legal obligation to retain them.

8. Rights of Participants

As a participant in our surveys, you have the following rights regarding your personal data:

- Right of access.
- Right of rectification.
- Right of erasure (right to be forgotten).
- Right to restriction of processing.
- Right to object.
- Right to data portability (where applicable).

To exercise these rights, please send a request to protecciodedades@ibjove.caib.es.

If you believe that the processing of your personal data does not comply with applicable regulations, you may file a complaint with the Spanish Data Protection Agency (AEPD) or the relevant authority in your country.

9. International Data Transfers

Your personal data will not be transferred to countries outside the European Economic Area (EEA). In the event that any international transfer occurs, we will ensure that appropriate measures are implemented to protect your rights and freedoms.

3 - "No similar activity has been promoted within the Balearic Youth Institute (IBJOVE) that would require the mass collection of personal data."

4 - Work has begun to tender the service of Data Protection Officer and compliance with data protection regulations, in order to implement the following measures:

- Development of a protocol of actions prior to the commencement of any processing of personal data that requires the intervention of a third party.

- Conducting an awareness and sensitization campaign for all employees of the Balearic Youth Institute (IBJOVE).

5 - Requests that, in the event of being sanctioned, "no publicity be given to it without anonymizing the name of the entity, due to the repercussions that may arise as an institution serving citizens."

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PROVEN FACTS

FIRST

The IBJOVE is a public entity dependent on the Ministry of Families and Social Affairs of the Government of the Balearic Islands, to which Law 5/2022 of 08/07 on Youth of the Balearic Islands attributes among its functions and competencies in article 16 c) "To prepare studies and publications, as well as to promote research and study on the youth reality of inter-island scope and to collaborate in the creation, management, and dissemination of regional statistics on youth."

The IBJOVE is governed by Decree 33/2023 of 26/05/2023 approving the statutes of the public business entity IBJOVE, which expressly repeals Decree 32/2006 of 31/03, which regulates the Balearic Youth Institute, and its article 5.2 states as functions, among others, to collaborate in the creation, management, and dissemination of regional statistics on youth.

The Governing Council of the Autonomous Community of the Balearic Islands, by Agreement of 16/05/2022, approved the ANNUAL STATISTICS PROGRAM 2022, in development of the STATISTICS PLAN OF THE BALEARIC ISLANDS 2018/2021, extended until the entry into force of the next Plan. Within the aforementioned ANNUAL PROGRAM, the distributions of statistical operations are contemplated, including the "Youth Survey of the Balearic Islands" managed by the IBJOVE. The same survey was included in the previous Agreement of the Governing Council of 17/05/2021 that approved the Annual Statistics Program 2021 in development of the aforementioned Statistics Plan of the Balearic Islands 2018-2021.

In the Agreement of 16/05/2022, the following characteristics were highlighted in the mentioned survey:

- "Objective and purposes: To know the living conditions of young people in the Balearic Islands and the processes of transition into adulthood to obtain relevant, reliable, and updated information to guide youth policies and improve the quality of life of youth.

Population or group: Young population aged 15 to 34 residing in households in the Balearic Islands: Mallorca, Menorca, Eivissa, and Formentera.

Main variables: Related to the transition of young people's lives (education, work, housing, and family), and comprehensive information about young people's lives (health, participation, leisure, and

language).

Disaggregation by sex.

Geographical scope: Autonomous.

Territorial disaggregation: Insular.

In the section "Obligation to collaborate," nothing is stated, and in the type of activity: "Experimental," noting that in other statistical operations used in the aforementioned Agreement, "consolidated" is usually indicated.

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IBJOVE in its response to the transfer of the claim stated that it was responsible for the processing in the "Youth Survey of the Balearic Islands," a fact that it confirmed in previous investigative proceedings.

SECOND:

The first Youth Survey of the Balearic Islands carried out in 2022 under the responsibility of IBJOVE began on 22/07/2022 with the sending of 3,000 certified letters to the individuals in the sample and was closed on 20/01/2023. The sample was extracted from the housing framework constructed from the information of the municipal census of inhabitants, as of 1/01/2022.

THIRD:

In the certified letter dated 8/11/2022 that the claimant certifies having received from IBJOVE, which was sent to complete the aforementioned Youth Survey of the Balearic Islands, it contained:

- It is stated that it is an official statistic and that "the sample consists of 3,000 people chosen through a random procedure carried out by the INSTITUTE OF STATISTICS OF THE BALEARIC ISLANDS," without specifying the source of the data.
- It informs about the purpose of the resulting information, "to facilitate the formulation of youth policies," and the objective, "to know the situation, demands, and needs of young people aged 15 to 34 in the Balearic Islands."
- "If you decide to respond to the survey online, you can do so at your convenience," "from the receipt of this letter and during the following ten days." To access the website and respond to the survey, it is indicated that one must enter "www.enquestajovesilles.com" in the address bar. Along with this, there are expressly assigned Username/passwords that are included in the letter.
- It is also indicated that the survey can be answered by phone—an interviewer would call you, sending a WhatsApp or calling a number that is provided, and another phone line was offered for clarification. Furthermore, at the beginning of the survey, a phone number is requested "in case we need to clarify any issue."
- Near the end of the letter, it states: "Remember that the information we will ask you for is mandatory communication," without indicating why it was mandatory and without adding the consequences of not responding. IBJOVE also stated in its response to the transfer of the claim that, nevertheless, it is common practice that if someone refuses to answer the questionnaire, they are replaced by the substitute person that constitutes the sample provided by IBESTAT.
- "The information we ask you for is protected by statistical confidentiality, is strictly confidential, and cannot be used for any purpose other than the preparation of this official statistic."

According to IBJOVE, the claimant completed the survey on 15/11/2022 through the website, and the day before, on 14/11/2022, contacted via WhatsApp indicating also that "there is no explanation of the data processing," to which the respondent replied that "it is an official statistic and therefore by Law, mandatory."

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information that, with slight syntactic changes, is reiterated in the welcome message for accessing the website when the online survey is to be conducted: “the information we request is mandatory communication.”

On the other hand, on 31/10/2023, in API, IBJOVE stated that, in the technical specifications of the service contract, it was indicated that IBJOVE provided the base text model of the letter to be sent to the individuals in the sample and the list of people to whom it should be sent, as well as their postal addresses. The awarded company will generate the final letters (and the personalized usernames and passwords that will be included in the text of the letter in the case of the individuals concerned).

FOURTH

In API, IBJOVE provided a copy of the Youth Survey of the Balearic Islands questionnaire, which is divided into 10 thematic areas or blocks, among which the following stand out: 7, “social cohesion,” 8: “political participation,” and 9: “health, sexuality, and lifestyles.”

To question 115, before the start of questions regarding political participation, health, and sexuality, there is an informative statement that indicates under the title “voluntary response questions” and states: “We have finished the mandatory response questions. The ones we will ask now, in accordance with current legislation, are voluntary due to the topics they address, but they are necessary to gather information to improve actions aimed at youth. We remind you that your responses are completely anonymous and will not be used individually and are fully protected by statistical confidentiality.”

In the block titled “participation and politics,” examples of questions include whether the respondent belongs to any religious or political association or entity, with the option “I do not wish to answer” among others, how they collaborate or participate, what type of support action they have carried out in the last 12 months, whether they are interested in politics, and how they consider democracy functions in Spain, as well as sections on “self-ideological positioning,” 122 to 125, or which party or coalition they would vote for if there were elections. In question 128, “How do you consider yourself in religious matters?” and which religion.

In the section on “health, sexuality, and lifestyles,” questions include whether they have taken medication for depression, whether they have seen a psychologist, with a section on “risky practices” regarding alcohol and drug consumption. In the sexuality section, the question of which gender they identify with is included, with options of man, woman, non-binary, or other, along with another question regarding sexual orientation.

FIFTH

IBJOVE responded regarding the reason for requesting data on politics, health, religion, and sexual orientation, stating that the survey must reflect issues related to the transition in the lives of young people (education, work, housing, and family), and comprehensive information about the lives of young people (health, participation, leisure, and language). Disaggregation by sex, in accordance with the approval of the Annual Statistics Program 2021 in the development of the Statistics Plan of the Balearic Islands corresponding to the Government Council. Furthermore, through the bibliographic review of the Inter-Island Technical Commission for monitoring the Youth Survey of the Balearic Islands (CSEJIB), it was determined that these are common themes in surveys whose mission is to...

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is to understand the reality of this group in order to formulate more appropriate youth policies that contribute to improving the living conditions of young people.

SIXTH

Regarding the role played by the DPD, IB JOVE states:

- “during the month of April 2022, advice was obtained on the measures to be adopted to ensure the protection of personal data before launching the survey,” and appropriate responses were provided,

- It also issued a report on the security measures to be adopted for sending the database of respondents to the polling company and compliance with the duty of information.

IB JOVE does not provide any document regarding the nature of the advice and the measures it claims to have implemented, which is a requirement prescribed in Article 5.2 of the GDPR.

SEVENTH

For the purpose of conducting the survey of the Youth of the Balearic Islands, IB JOVE signed a Collaboration Agreement on 12/02/2021 with the Institute of Statistics of the Balearic Islands (IBESTAT), with the aim of establishing lines of cooperation for the execution of the statistical operation, as well as its subsequent dissemination. In its third clause of the Agreement, it states that it is the responsibility of IB JOVE, among others, to “develop and design the questionnaires, hire the company that will carry out the fieldwork, ensure quality control at all stages of the process, while IBESTAT will advise on the design of the questionnaire prepared by IB JOVE, the definition of the methodology, the processes, and the instruments for data collection of the survey, in accordance with IB JOVE. As a common task, they are responsible for jointly supervising the fieldwork, as well as validating and cleaning the data, using the criteria agreed upon by both parties.”

EIGHTH

On 21/01/2022, a service provision contract was signed by IB JOVE with APLICA INVESTIGACIÓ SOCIAL S.L., a company that on 23/12/2021 was awarded the service “fieldwork and processing of the collected data, analysis and diagnosis of data, and drafting of analysis and interpretation, exploitation, analysis and interpretation of the statistical data obtained in the fieldwork and drafting of conclusions regarding the main indicators of youth, planned for the realization of the survey of youth in the Balearic Islands.” The object of the contract includes “understanding the living conditions of young people in the Balearic Islands and the processes of transition to adult life to obtain relevant, reliable, and updated information to guide youth policies and improve the quality of life of the youth of the islands through the realization of the Youth Survey in the Balearic Islands.” Clause 12 establishes the contractor's obligation to maintain professional secrecy regarding the information to which they may have access.

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Along with the contract, the technical specifications of the contract (ppt) (not provided) referred to by IBJOVE are included, which more specifically outline the conditions and details for conducting the survey, highlighting among other elements:

o

IBJOVE will provide the base text of the letter and the list of individuals to whom it will be sent, as well as their postal address.

o

The awarded company will generate the final letters (and the users and passwords that will be included in the text of the letter in the case of the individuals concerned).

NINTH

For the execution of the aforementioned contract, a data processing agreement was signed on the same date, 21/01/2021, between the aforementioned parties, in which, according to its second clause, APLICA is authorized to process the necessary information, which includes name and surname, ID number, phone numbers, email, without prejudice to other data, for the purpose of the contract, and in accordance with the instructions of the data controller, with compliance with the duty of confidentiality including its personnel. Clause 4.11 states that “it is the responsibility of the data controller to provide the right to information at the time of data collection.” Other clauses include the obligation to return the personal data to the data controller and, if applicable, the media where it is recorded once the service is completed. The return will imply the total deletion of the existing data on the computer systems used by the data processor.

Regarding the information to be provided to the respondents about the collection and processing of data, IBJOVE provided in its response to the transfer of the complaint information indicating that on

04/05/2022 it had sent the data processing manager, APLICIA, the informative clause to be included in the form, with an email sent by an employee of IBOVE on 25/01/2023 when the AEPD forwarded this complaint to IBOVE, inquiring whether said clause had been published.

TENTH

Regarding the information that should be provided to the individuals from whom the survey data was collected, it is evidenced that IBOVE, despite having drafted a model informative clause and having sent it to the data processor APLICIA on 04/05/2022, did not effectively review its implementation by the data controller, IBOVE, as the aforementioned information did not appear on the website, in the survey questionnaire, or in the letters sent to the respondents. Until the transfer of this complaint, there is no record that IBOVE had realized that said clause had not been included, as it inquired via email at the end of January 2023 to the data processor APLICIA.

ELEVENTH

IBOVE stated in API that the information with which the data processor (APLICA) worked did not contain personal data, having assigned a unique code to the personal data of each individual in the sample. The database that linked the unique code with the personal data of the respondents was not made available to the final client. IBOVE states that, after 12 months from the completion of the fieldwork, it is provided for in the contract to destroy the database that connects individuals in the sample and the unique code.

Regarding these statements, there is no mention of them in either the service contract or the data processing agreement, nor is there knowledge of the circulation of personal data in such a manner to the data processor, nor the chronology and form, made available by IBOVE to its processor mentioned here.

On the contrary, it is stated in the data processing agreement that the data processor, APLICIA, collects data "for the execution of the services derived from the fulfillment of the object of this contract," and that the data controller authorizes the processor to process the necessary information, which includes: name and surname, ID number, phone numbers, email, without prejudice to other data."

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Preliminary Issues

According to Recital 1 of the GDPR, the protection of natural persons in relation to the processing of personal data is a fundamental right.

Article 1.2 of the GDPR states: "This Regulation protects the rights and fundamental freedoms of natural persons and, in particular, their right to the protection of personal data."

Article 2 of this Regulation, titled "Material Scope," establishes in its paragraph 1:

"This Regulation applies to the total or partial automated processing of personal data, as well as to the non-automated processing of personal data contained or intended to be included in a filing system."

According to Article 4 of this Regulation:

"For the purposes of this Regulation, the following definitions shall apply:

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1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an

identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;

2) “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction;

“5) ‘pseudonymization’: the processing of personal data in such a way that the data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organizational measures to ensure that the personal data are not attributed to an identified or identifiable natural person;”

“7) ‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States;

8) ‘processor’ or ‘processor’: the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller;”

“15) ‘data concerning health’: personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status;”

It should be noted the jurisprudence of the Constitutional Court and the Court of Justice of the European Union (CJEU) regarding the recognition of the fundamental right to the protection of personal data, as this Agency has repeatedly pointed out.

According to the same, the right to the protection of personal data is a fundamental right, the content of which consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and which also allows the individual to know who holds that personal data and for what purpose, being able to oppose such possession or use (STC 76/2019, of 22/05, and STC 292/2000, of 30/11).

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The cited rulings also highlighted the necessity that any interference with this fundamental right be provided for by a law or regulation of the European Union, while respecting, in any case, the principle of proportionality. Specifically, the Constitutional Court, in ruling STC 76/2019, dated 22/05, after citing, among others, its previous ruling STC 292/2000, dated 30/11, states, being transferable to the competential scope of the Autonomous Community of the Balearic Islands due to its own competencies in youth policy related to the analyzed statistics containing personal data:

“- Secondly, by express mandate of the Constitution, any state interference in the area of fundamental rights and public freedoms, whether it directly affects their development (art. 81.1 CE) or limits or conditions their exercise (art. 53.1 CE), requires a legal authorization (see, among others, STC 49/1999, dated April 5, FJ 4). In STC 49/1999, FJ 4, we defined the constitutional function of this legal reserve in the following terms:

This legal reserve to which the Spanish Constitution generally subjects the regulation of fundamental rights and public freedoms recognized in its Title I performs a dual function, namely: on the one hand, it ensures that the rights attributed to citizens by the Constitution are not affected by any unauthorized state interference by their representatives; and, on the other, in a legal system like ours where Judges and Magistrates are subject "only to the rule of Law" and there is, in essence, no binding precedent (SSTC 8/1981, 34/1995, 47/1995, and 96/1996), it ultimately constitutes the only effective way to guarantee the requirements of legal certainty in the area of fundamental rights and public freedoms.

Therefore, regarding our legal system, we have characterized legal certainty as a sum of legality and certainty of Law (STC 27/1981, legal basis 10)."

This dual function of the legal reserve translates into a dual requirement: on the one hand, the necessary intervention of the law to enable the interference; and, on the other hand, that legal norm "must meet all those indispensable characteristics as a guarantee of legal certainty," that is, "it must express all and each of the assumptions and conditions of the intervention" (STC 49/1999, FJ 4). In other words, "it not only excludes powers in favor of regulatory norms [...], but also implies other requirements regarding the content of the Law that establishes such limits" (STC 292/2000, FJ 15)."

Recital 162 of the GDPR states: "This Regulation shall apply to the processing of personal data for statistical purposes. The statistical content, access controls, specifications for the processing of personal data for statistical purposes, and the appropriate measures to safeguard the rights and freedoms of data subjects and ensure statistical confidentiality must be established, within the limits of this Regulation, by Union Law or the laws of the Member States. For statistical purposes, any operation of collecting and processing personal data necessary for statistical surveys or for the production of statistical results is understood. These results

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Statistical data can also be used for various purposes, including scientific research purposes. The statistical purpose implies that the result of the processing for statistical purposes is not personal data, but rather aggregated data, and that this result or the personal data is not used to support measures or decisions related to specific individuals."

In this case, the dual condition arises in the data, that they are statistical data due to the intended purpose, collected by statistical services for exclusive use in the development and preparation of statistical results and analyses. At the same time, their basis is that they are personal data. The collection and processing of personal data for public purposes for the production of statistics, understood as the quantitative and qualitative information, aggregated and representative that characterizes a collective phenomenon in a given population, involves in the process of preparation a wide range of data and information processing activities, that is, all activities related to the collection, storage, processing, and analysis required for the compilation of statistics.

Regarding this processing, Recital 156 of the GDPR states:

"The processing of personal data for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes must be subject to adequate safeguards for the rights and freedoms of the data subject in accordance with this Regulation. These safeguards must ensure that technical and organizational measures are applied to ensure, in particular, the principle of data minimization. Further processing of personal data for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes must be carried out when the data controller has assessed the feasibility of fulfilling those purposes through data processing that does not allow the identification of data subjects, or that no longer allows it, provided that adequate safeguards exist (such as, for example, data pseudonymization). Member States must establish adequate safeguards for the processing of personal data for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes. Member States should be allowed to establish, under specific conditions and subject to adequate safeguards for the data subjects, specifications and exceptions regarding the information requirements and the rights of rectification, erasure, the right to be forgotten, restriction of processing, data portability, and objection, when processing personal data for archiving purposes in the public interest, for scientific and historical research purposes, or for statistical purposes. The conditions and safeguards in question may involve specific procedures for data subjects to exercise these rights if deemed appropriate in light of the purposes pursued by the specific processing, along with the technical and organizational measures aimed at minimizing the processing of personal data in accordance with the principles of proportionality and necessity..."

In this case, the respondent obtained the personal information of the complainant and all those who participated in the survey through the questionnaire they completed, with 3,000 surveys planned, associated with their identifying data of the statistical activity (their password and user code contained in the letter), which constitutes the processing of personal data.

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and therefore, in addition to statistical regulations, the GDPR and the LOPDGDD will apply.

The data was collected by the data controller IBOVE through the questionnaire, which could be completed via the website or by phone that it makes available to the respondents for this purpose, and through the intervention of the company responsible for processing APLICA, in this first Youth Survey of the Balearic Islands carried out in 2022.

In accordance with the facts that are the subject of the claim, the existence of an exception to the prohibition of processing personal data derived from Article 9.1 of the GDPR (sexual orientation, sexual life, political opinions, religious beliefs, and health data, among others) contained in Article 9.2 of the GDPR will be analyzed first. Next, it will be cumulatively analyzed whether a legal basis from those contained in Article 6.1 of the GDPR is present.

Subsequently, the absence of information in the collection of personal data from the surveys will be analyzed.

III Applicable regional and sectoral regulations

Organic Law 1/2007, of 28/02, reforming the Statute of Autonomy of the Balearic Islands, provides in its Article 30.32 that the exclusive competencies of the Autonomous Community include "statistics of interest for the Autonomous Community as the organization and management of its own statistical system."

Article 87 of the Statute, under the heading "own law," states the following:

- "1. In matters of exclusive competence of the Autonomous Community, the own law of the Balearic Islands is applicable in its territory with preference to any other, in the terms provided in this Statute.
2. In determining the sources of civil law of the Balearic Islands, the rules established therein shall be respected.
3. In all matters not regulated by the own law of the Balearic Islands, the law of the State shall apply supplementary."

Therefore, in matters of exclusive competence of the Balearic Islands, in everything not regulated by the own law, the law of the State will apply supplementarily; that is to say, in this case and for what is of interest here, Law 12/1989 of 9/05 on Public Statistical Function (LFEP) will apply supplementarily. The management of statistics of interest for the Autonomous Community of the Balearic Islands as a statutory own and exclusive competence is developed in Law 3/2002 of 17/05, on Statistics of the Balearic Islands (LEIB), from which the following articles are noteworthy:

Article 3 General Principles

"The statistical activity of the Autonomous Community of the Balearic Islands must be governed and adapted especially to the following principles:

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- a) Objectivity and technical correctness.
- b) Transparency.
- c) Proportionality.

Article 5 Transparency

- "1. Subjects providing data for statistical purposes have the right to obtain sufficient information about

the protection corresponding to such data, the purpose for which they are intended, and whether or not the response is mandatory.

2. In all questionnaires or forms of each statistical operation regulated by this law, the following information must be stated:

- a) The characteristics of the statistical activity being carried out.
- b) The main purpose for which the data is intended.
- c) The obligation, if applicable, to cooperate.
- d) The protection provided by statistical confidentiality.

3. The units conducting statistical activity are obliged to provide this information and, where appropriate, must adopt the necessary measures so that the data providers can exercise this right."

Article 6 Proportionality

"Any unit responsible for carrying out a statistical activity regulated by this law has the obligation to apply the principle of proportionality, which always implies the necessary correspondence and moderation between the results that are intended to be obtained and the nature and volume of the information requested."

Statistical confidentiality is regulated in Articles 7 to 13, which defines it as "the knowledge that a person possesses as a result of statistical activity and that they are obliged not to disclose, communicate, or act based on such knowledge" (art 7.1), and "covers all individualized data of a private, personal, family, economic, or financial nature, used to compile the statistics, obtained directly from the informant or from administrative sources. It also covers those data that lead, due to their structure, content, or degree of disaggregation, to the identification of natural or legal persons." Furthermore, Recital 163 of the GDPR states that "confidential information collected by the statistical authorities of the Union and national authorities for the preparation of official European and national statistics must be protected."

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The LEIB establishes in its Chapter III titled: "On the Obligation to Provide Information," its articles:

"14 Mandatory Response Statistics

"Mandatory response statistics are those determined in the Statistical Plan of the Balearic Islands, in the annual development programs, as well as those that, by virtue of what is provided in Article 19 of this law, are included in the corresponding annual program with this character."

Article 15 Persons Obligated to Provide Information

"1. The persons or entities determined in accordance with the provisions of the following sections are obliged to provide the information referred to in the previous article that is requested of them. In the event that such information consists of individualized data protected by the current regulations at any given time regarding the right to honor and personal and family privacy, its provision is voluntary, and this circumstance must be stated in the information requests made, explicitly, in a clearly visible place, and in a font size not smaller than that of the aforementioned request.

2. The regulation of each statistic must determine the persons or entities obligated to provide the information, regardless of their physical or legal nature, public or private, and of their nationality, as long as they have their domicile, residence, or are established within the territorial scope of the autonomous community of the Balearic Islands."

From the interpretation of this article and Articles 14 and 5, it is thus distinguished the obligation to collaborate in responding to the statistical questionnaire, as mandatory or of mandatory response, from the obligatory or non-obligatory nature of some responses to specific questions contained in the questionnaire. The latter may pertain to sexual orientation, ideology, health, data encompassed in the category of special data with a treatment regime that requires the concurrence of an exception from Article 9.2 of the GDPR that lifts the prohibition established in Article 9.1 of the GDPR regarding the processing of special categories of personal data, plus at least one of the legitimizing bases of Article

6.1 of the GDPR as will be analyzed in another section.

It is also deduced that, unlike in the LFEP which indicates in its Article 7.1 that “statistics for which mandatory data is required will be established by Law,” in the scope of the CCAA of the Balearic Islands, it would suffice for them to be included in the Statistical Plan or in the Program that develops the plan, both with the competence to be approved by the Government Council (Article 17 of the LEIB). This peculiarity is simply mentioned, as from the analysis carried out it is deduced that the first survey of youth in the Balearic Islands is not mandatory, and because the limitation of fundamental rights that the processing of personal data involved in this specific survey implies, if it were decided that it were mandatory, would be a decision of an executive body, not a legislative one as provided for in the State Law.

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Article 28 Preservation and Custody of Statistical Information

“1. The units of the statistical system must preserve and safeguard the information obtained for the purpose of producing statistics, and must adopt whatever security measures are necessary to comply with the principles of this law.

2. The preservation of the information does not necessarily imply the preservation of the original media, as long as its content has been transferred to computer or other types of media.

3. When the units of the statistical system deem that the preservation of any type of documentation is evidently unnecessary, they may agree to its destruction once the procedures determined by regulation have been fulfilled.”

For its part, the LFEP, which regulates the statistical function for state purposes, under the provisions of Article 149.1.31 of the CE, states in its explanatory memorandum:

- “In the new text, the statistical function itself is ordered first, to resolve which public authority can decide the formation of a statistic and which normative instruments must be used to regulate it. The principle is established, in close connection with the constitutional rules on the reservation of law resulting from Articles 18.1 and 4 and 53.1, that statistics requiring data on a mandatory basis must be regulated, at least in their essential aspects, by law.”

- “Regarding the collection, processing, preservation, and dissemination of data, three main aspects of the new regulation deserve to be highlighted”: (only the two connected to the issue raised are mentioned here)

“First, concerning the collection of data, there is a continuous concern to safeguard fundamental rights - and in particular, the right to privacy when personal data is required.”

“Second, regarding the processing and preservation of data, the Law incorporates, above all, an extensive and, as far as our country is concerned, brand new regulation of statistical secrecy. It should be noted at this point that the new Regulation has not assumed the role that corresponds to the data protection law that may be approved in application of the provisions of Article 18.4 of the Constitution. However, it has regulated the aforementioned issue to the extent required by respect for fundamental rights in the performance of the statistical function. It has already been stated that the Law does not aspire to take on the role of a data protection law, but it should be noted, in any case, that the issues of data collection and dissemination always present, from a statistical perspective, peculiarities that could not be incorporated into general legislation but have their most suitable location - as is also common in other countries - in statistical legislation.

The Law contains regulations, especially concerning data collection and the ordering of statistical secrecy, that affect fundamental rights, particularly personal privacy; however, the text does not imply a development of the constitutional provisions relating to the aforementioned right nor does it contain a direct regulation of it, so that, in accordance with the

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According to the doctrine of the Constitutional Court, it is not necessary for the corresponding provisions to have the rank of organic law.”

The LFEP establishes:

Article 3.2:

“In relation to statistics for the purposes of the Autonomous Communities, this Law shall be directly applicable, with the exceptions contemplated therein, to the Autonomous Communities that have legislative development and execution competence or only execution competence, and it shall apply subsidiarily, in accordance with the provisions of Article 149.3 of the Constitution, in the Autonomous Communities that have exclusive competence in statistical matters.”

Article 11:

“1. When statistical services request data, they must provide the interested parties with sufficient information about the nature, characteristics, and purpose of the statistics, also warning them whether or not collaboration is mandatory, the protection afforded to them by statistical confidentiality, and the penalties they may incur for not collaborating or for providing false, inaccurate, incomplete, or late data.

2. In any case, the provision of data that may reveal ethnic origin, political opinions, religious or ideological beliefs, and, in general, any circumstances that may affect personal or family privacy shall be strictly voluntary and, consequently, such data may only be collected with the express consent of the interested parties.”

Furthermore, it should be noted that the Statistical Plan of the Balearic Islands 2018-2021, extended and approved by Decree 40/2018 of 23/11, BOCAIB 24/11/2018, establishes in its Article 24.2 that the obligation to provide the necessary data requested is excluded:

2. “...personal data that reveal ethnic or racial origin, political opinions, religious or philosophical beliefs, trade union affiliation, the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data related to health, or data related to the sexual life or sexual orientation of a natural person, except in cases where any of the circumstances provided for in paragraph 2 of Article 9 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, apply.”

Likewise, the LEB, approved in 2002, regarding the possible collection of such data, must be interpreted in accordance with what the RGPD and the LOPDGDD have established for such data.

THE AGREEMENT OF THE GOVERNMENT COUNCIL OF THE BALEARIC ISLANDS OF 16/05/2022, by which the Annual Statistics Program 2022 is approved, in development of the STATISTICAL PLAN OF THE BALEARIC ISLANDS 2018-2021 (approved by DECREE), extended, regarding the -Survey on Youth in the Balearic Islands, does not contain the obligation to collaborate in it, with the field of “obligation to collaborate” being empty, unlike some others where the obligated collective is expressly mentioned.

It is deduced, therefore, that since the collective or group of people who are obliged to collaborate does not appear, as it does in other operations provided for in the agreement of the Government Council, the completion of the survey will not be mandatory, which relates to the principle of transparency of the survey.

Thus, those who respond to it would do so voluntarily. Responding voluntarily to the survey does not imply per se that the consent granted contained in the RGPD is obtained, as it does not apply in this case because the entity in question does not indicate as such the source of legitimacy for obtaining the survey data nor is it recorded that it has been collected in accordance with its defining notes: as a manifestation of free, specific, informed, and unequivocal will.

IV Special category data collected in part of the “first youth survey of the Balearic Islands.”

Articles 5 and 6 of the RGPD aim respectively at “principles relating to processing” and the “lawfulness of processing.” Among the principles of processing, integrity and confidentiality are also included.

The entity in question has processed, among other types of data, the following:

- Of ideological beliefs, of political opinions

- Related to religious beliefs
- Related or pertaining to health
- Related to sexual life
- Related to the sexual orientation of the person.

All of them defined as special categories in Article 9 of the RGPD.

Article 9 of the RGPD, also located in the same Chapter II titled: "principles" under the title "Processing of special categories of personal data," is based on the prohibition of processing such data.

The Court of Justice of the EU has specified that the purpose of Article 9, paragraph 1, of the RGPD, is to ensure greater protection against data processing that, due to the particular sensitivity of the data being processed, may constitute a particularly serious interference with the fundamental rights to private life and the protection of personal data, guaranteed by Articles 7 and 8 of the Charter of Fundamental Rights.

Article 9.1 of the RGPD states:

"1. The processing of personal data revealing ethnic or racial origin, political opinions, religious or philosophical beliefs, or trade union affiliation, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data related to health, or data related to the sexual life or sexual orientation of a natural person is prohibited."

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However, Article 9(2)(a) to (j) of the GDPR establishes an exhaustive list of exceptions to the prohibition on processing such data, although some of these circumstances have a limited scope of application (labor, social, associative, health, judicial, etc.) or respond to a specific purpose, which in itself delineates the specific processing activities that are authorized as exceptions to the general rule. Furthermore, the enabling effectiveness of several of the cases provided therein is conditioned on the Union Law or that of the Member States expressly providing for and regulating them within their areas of competence: this is the case for the circumstances listed in letters (a), (b), (g), (h), (i), and (j).

Specifically, the authorizations state:

"2. Paragraph 1 shall not apply when one of the following circumstances occurs:

- a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union Law or the law of the Member States provides that the prohibition mentioned in paragraph 1 cannot be lifted by the data subject;
- b) the processing is necessary for compliance with a legal obligation and the exercise of specific rights of the data controller or the data subject in the field of employment law and social security and protection, to the extent that it is authorized by Union Law of the Member States or a collective agreement under the law of the Member States that establishes adequate safeguards for the respect of fundamental rights and the interests of the data subject;
- c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;
- d) the processing is carried out, within the scope of its legitimate activities and with appropriate safeguards, by a foundation, an association, or any other non-profit body whose purpose is political, philosophical, religious, or trade union, provided that the processing relates exclusively to current or former members of such bodies or to persons who have regular contact with them in relation to their purposes and provided that the personal data are not disclosed outside of them without the consent of the data subjects;
- e) the processing concerns personal data which the data subject has made manifestly public;
- f) the processing is necessary for the establishment, exercise, or defense of legal claims or when courts are acting in their judicial capacity;
- g) the processing is necessary for reasons of substantial public interest, based on Union Law or the law of the Member States, which must be proportional to the objective pursued, and must essentially respect the right to...

data protection and establish appropriate and specific measures to protect the interests and fundamental rights of the data subject;

h) the processing is necessary for the purposes of preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care assistance or treatment, or management of health and social care systems and services, based on Union law or the laws of the Member States or under a contract with a health professional and without prejudice to the conditions and guarantees set out in paragraph 3;

i) the processing is necessary for reasons of public interest in the area of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the laws of the Member States that establish appropriate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy,

j) the processing is necessary for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect essentially the right to data protection, and establish appropriate and specific measures to protect the interests and fundamental rights of the data subject.”

A common note at first glance of the drafts of all these exceptions that lift the prohibition on processing special categories of data is that, in all cases, it is required that “the processing is necessary,” except in Article 9.2. a) (provision of “explicit consent for the processing of such personal data for one or more of the specified purposes, except where Union law or the laws of the Member States provide that the prohibition mentioned in paragraph 1 cannot be lifted by the data subject,” or Article 9.2.e) “the processing relates to personal data which the data subject has made manifestly public.”

Article 89 of the GDPR states:

“1. Processing for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall be subject to appropriate safeguards, in accordance with this Regulation, for the rights and freedoms of data subjects. Such safeguards shall ensure that there are technical and organizational measures in place, in particular to ensure compliance with the principle of data minimization. Such measures may include pseudonymization, provided that these purposes can be achieved in this way. As long as these purposes can be achieved through further processing that does not allow or no longer allows the identification of the data subjects, those purposes will be achieved in that manner.

2. When personal data are processed for scientific or historical research or statistical purposes, Union law or the laws of the Member States may establish

exceptions to the rights contemplated in Articles 15, 16, 18, and 21, subject to the conditions and guarantees indicated in paragraph 1 of this article, provided that it is likely that these rights would severely hinder or obstruct the achievement of scientific purposes and when such exceptions are necessary to achieve those purposes.”

As can be seen, Article 89 refers not to the legitimizing basis for the processing of special category data in statistics, but to the guarantees of its processing, which constitutes an additional requirement that must be accumulated to said legitimization.

It should also be noted that, notwithstanding the express consent provided for in Article 9.2.a) of the GDPR, it has its own limits as outlined in Article 9 of the LOPDGDD, which states: “For the purposes of

Article 9.2.a) of the GDPR, in order to avoid discriminatory situations, the mere consent of the affected party shall not be sufficient to lift the prohibition on the processing of data whose main purpose is to identify their ideology, trade union affiliation, religion, sexual orientation, or racial or ethnic origin. The provisions of the previous paragraph shall not prevent the processing of such data under the other cases contemplated in Article 9.2 of the GDPR.”

It should be specified that from the file it is inferred that the processing of data collected in the official Youth Survey of the Balearic Islands would have the purpose of:

- Understanding the situation, demands, and needs of young people aged 15 to 34 in the Balearic Islands, using the information to facilitate the formulation of youth policies.

In accordance with the Agreement of the Government Council of 17/05/2021, which approves the Annual Statistics Program 2021 in development of the Statistics Plan of the Balearic Islands 2018-2021, which is maintained in the Agreement of the Government Council of 16/05/2022:

- “Objective and purposes: To understand the living conditions of young people in the Balearic Islands and the transition processes into adulthood to obtain relevant, reliable, and updated information to guide youth policies and improve the quality of life of the youth population or group.”

- “Main variables: Related to the transition of young people's lives (education, work, housing, and family), and comprehensive information about young people's lives (health, participation, leisure, and language). Disaggregation by sex.”

As can be seen, there are data for which even the consent of the affected party would not be sufficient to lift the prohibition when the main purpose is to identify their ideology, trade union affiliation, religion, sexual orientation, or racial or ethnic origin.

However, in this case being analyzed, it can be inferred from the purposes and being a voluntary survey in which such questions can be left unanswered.

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Regarding said data, it does not seem that the main purpose is to identify the ideology, union affiliation, religion, or sexual orientation of the individuals conducting the surveys, but rather to treat them in an aggregated manner to obtain results for statistical or research purposes. The statistical work, as stated by IBOVE in its allegations, seeks to interrelate this information and factors affecting youth that need to be understood for adequate planning and knowledge of the policies affecting this group.

The possibility of processing special categories of personal data as an exception is referred to in Recital 52 of the GDPR, which states:

"Exceptions to the prohibition on processing special categories of personal data must also be authorized when established by Union or Member State law and provided that appropriate safeguards are in place to protect personal data and other fundamental rights, when it is in the public interest."

"Such an exception is possible for statistical purposes."

However, the exceptions in Article 9.2 a) to j) of the GDPR for the processing of these special categories of data used in the survey do not exclude the applicability of the compliance requirements of Article 6.1 of the GDPR, and both must be applied cumulatively where appropriate. This translates in practice to the fact that, even if it were demonstrated that in the specific case there existed some circumstance that lifted the prohibition on processing the special category data used in the survey, it is not sufficient for its legality, requiring a legal basis as indicated in Article 6.1 of the GDPR, which exclusively establishes that "processing shall be lawful only if at least one of the following applies."

Related to this issue, Article 25.1 to 3 of the LOPDGDD states:

"Processing of data in the context of the public statistical function":

- "1. The processing of personal data carried out by bodies that have been assigned the competencies related to the exercise of the public statistical function shall be subject to the provisions of their specific legislation, as well as to Regulation (EU) 2016/679 and this organic law.

2. The communication of data to the competent statistical authorities shall only be understood as

covered by Article 6.1 e) of Regulation (EU) 2016/679 in cases where the statistics for which the information is required is mandated by a European Union law or is included in legally provided statistical programming instruments.

In accordance with the provisions of Article 11.2 of Law 12/1989, of May 9, on the Public Statistical Function, the data referred to in Articles 9 and 10 of Regulation (EU) 2016/679 shall be strictly voluntary and, consequently, may only be collected with the express consent of the affected individuals."

V Non-compliance obligation - Article 9.1 GDPR.

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Given the prohibition on the processing of special category data as indicated in Article 9.1 of the GDPR, in relation to Article 9 of the LOPDGDD, the respondent has carried out, through its Youth questionnaires in the Balearic Islands, the processing of the aforementioned category of data, as they were collected by it and managed on its behalf by the entity responsible for processing.

It is evidenced that in the information regarding data collection that was to be provided to the respondents, it was indicated by IBOVE that "The legal basis for the processing is based on the public interest of the consultation, survey, and study," since it does not expressly state the literal text, it was estimated in the proposal that the most closely related in terms of content and similarity would be that of Article 6.1 e) of the GDPR: "the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller" and this is confirmed in the allegations to the proposal. However, IBOVE, based on the legitimization for special category data, did not provide any explanation in previous proceedings, indicating in allegations to the proposal that the legal bases for the processing of special category data that would allow its processing reside in Article 9.2 j) of the GDPR, and as noted, it now expressly states that alongside it, the basis of Article 6.1 e) of the GDPR because: "Our surveys are conducted for purposes that contribute to the knowledge and well-being of society."

Nevertheless, as stated in Article 6.3 of the GDPR,

"3. The legal basis for the processing referred to in paragraph 1, letters c) and e), must be established by:

- a) Union law, or
- b) the law of the Member States applicable to the controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, letter e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of the processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of the processing, including measures to ensure lawful and fair processing, such as those relating to other specific processing situations under Chapter IX. Union law or the law of the Member States shall fulfill a public interest objective and shall be proportionate to the legitimate aim pursued."

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The above is consistent with Recital 45 of the GDPR, which states:

"When processing is carried out in compliance with a legal obligation to which the controller is subject, or if it is necessary for the performance of a task carried out in the public interest or in the exercise of

official authority, the processing must be based on Union or Member State law. This Regulation does not require that each individual processing operation be governed by a specific rule. A rule may be sufficient as a basis for several data processing operations based on a legal obligation applicable to the controller, or if the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority. The purpose of the processing must also be determined under Union or Member State law. Furthermore, such a rule could specify the general conditions of this Regulation under which the lawfulness of the processing of personal data is governed, establish specifications for determining the controller, the type of personal data being processed, the affected data subjects, the entities to which personal data may be communicated, the limitations of purpose, the retention period of the data, and other measures to ensure lawful and fair processing. It must also be determined under Union or Member State law whether the controller carrying out a task in the public interest or in the exercise of official authority must be a public authority or another natural or legal person governed by public law, or, when carried out in the public interest, including health-related purposes such as public health, social protection, and the management of health services, a private law entity, such as a professional association.

The fact that IBOVE is empowered by the legitimizing basis of public interest to process personal data for the purpose of conducting surveys does not mean that the formalization and submission by the interested parties are mandatory, as this depends on a declaration to that effect by the Governing Council in this case.

The survey is mandatory for the competent entities, with IBOVE required to conduct it at least every five years, according to Law 5/2022 of 8/07 on youth policies in the Balearic Islands, and it is implemented through a Statistics Plan developed in annual Programs.

However, in any case, IBOVE would also need to have an exception that lifts the prohibition on processing special category data that it has been shown to have processed to conduct the youth survey of the Balearic Islands, as provided for in Article 9.2 of the GDPR.

It should be noted that Article 9.2(j) and Article 89 of the GDPR state:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.”

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2. Paragraph 1 shall not apply when one of the following circumstances occurs:

“j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union or Member State law, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.”

Article 89 of the GDPR states:

“1. Processing for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes shall be subject to appropriate safeguards, in accordance with this Regulation, for the rights and freedoms of data subjects. Such safeguards shall ensure that technical and organizational measures are in place, in particular to ensure respect for the principle of data minimization. Such measures may include pseudonymization, provided that these purposes can be achieved in this way. Whenever these purposes can be achieved through further processing that does not allow or no longer allows the identification of data subjects, those purposes shall be achieved in that manner.

2. When personal data is processed for scientific or historical research or statistical purposes, Union or Member State law may provide for exceptions to the rights laid down in Articles 15, 16, 18, and 21, subject to the conditions and safeguards set out in paragraph 1 of this Article, provided that it is likely

that the exercise of those rights would seriously impede or prevent the achievement of scientific purposes and when those exceptions are necessary to achieve those purposes.”

Thus, a first requirement is that the conditions and scope of such processing vary according to the legislative provisions enacted in each Member State, and the legislative act that is enacted must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject. Furthermore, such enacted legislative provisions must be interpreted in light of the principles established in Article 5 of the GDPR and taking into account the case law of the Court of Justice of the European Union. In particular, the exceptions and limitations regarding data protection provided for in Article 9, paragraph 2, letter j), and in Article 89 of the GDPR must be applied only to the extent that it is strictly necessary.

Moreover, the requirements of Article 89.1 of the GDPR emphasize the importance of the principle of data minimization, the principle of integrity and confidentiality, and the principle of data protection by design and by default.

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Consequently, section 2 of Article 9 of the GDPR determines the non-application of what is provided in paragraph 1, lifting the initial prohibition and allowing the processing of such data in the cases and under the conditions established therein, among which is the one related to the necessity of processing for statistical purposes, in accordance with Article 89, paragraph 1, based on Union or Member State law, which must be proportional to the objective pursued, essentially respect the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

The necessity of processing for specific purposes does not refer to the entirety of the data, whether health data, ideological data, sexual identity data, etc., but must specify what type of data within its category and specify each specific data point and why it correlates with the necessity of its processing, as well as the amount of data necessary which will depend on specifying the concrete and specific purpose. This must be justified for each survey, considering what is intended, and understood in the sense of the GDPR: “The reason is, in summary, that these circumstances would operate as a legal basis only in relation to processing that was ‘necessary’ and the term ‘necessity’ has its own independent meaning in Community legislation. The Court of Justice of the European Union considers it an ‘autonomous concept of Community Law’ (CJEU ruling of 16/12/2008, case C-524/2006, paragraph 52) and the European Court of Human Rights states that ‘< >’ (paragraph 97 of the ECHR ruling 25/03/1983).”

In light of the applicable regulations, it is necessary to carry out the processing of data conducted in the survey for public statistical interest purposes, and special category data for statistical purposes must be contained in an action specifically protected and regulated by European law or by the legislation of the Member States.

To this end, considering that the LEIB, and its Statistical Plan developed by the annual programs states:

- “1. The individuals or entities determined in accordance with the provisions of the following sections are obliged to provide the information referred to in the previous article that is requested from them. In the event that such information consists of individualized data protected by the current regulations regarding the right to honor and personal and family privacy, its provision is voluntary, and this circumstance must be stated in the information requests made, expressly, in a clearly visible place, and in a font size no smaller than that of the aforementioned request.”, Art 15 LEIB.
- The Statistical Plan of the Balearic Islands 2018-2021 extended, approved by Decree 40/2018 of 23/11, BOCAIB 24/11/2018, establishes in its Article 24.2 that the obligation to provide the necessary data requested is excluded
- 2. “...personal data revealing ethnic or racial origin, political opinions, religious or philosophical beliefs,

trade union affiliation, the processing of genetic data, biometric data aimed at uniquely identifying a person.”

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physical, health-related data, or data related to the sexual life or sexual orientation of an individual, except in cases where one of the circumstances provided for in paragraph 2 of Article 9 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, applies.”

The interpretation of this exclusion from the obligation to provide the data mentioned, such as those contained in the youth survey of the Balearic Islands, does not mean that they cannot be obtained and processed with the explicit consent of the individual for one or more of the specified purposes, the first circumstance mentioned in Article 9.2 a) of the GDPR.

Regarding the alleged legal basis of Article 9.2.j) of the GDPR, despite the aforementioned mention of the possibility of collecting this type of data generally referred to in the Statistical Plan, no specification is provided regarding the necessity of processing such data in surveys in general or in this youth survey of the Balearic Islands in particular.

Thus, the generic references to what the special categories of data in their different modalities can contribute to surveys, which IBOVE makes in its allegations, cannot be considered a judgment of necessity for the processing of such data for the reasons previously expressed.

Furthermore, in response to IBOVE's allegations regarding the guarantees it offers in compliance with the provisions of Article 89.1 of the GDPR, mentioning aspects related to the pseudonymization of the process assigned to each individual in the data processed by the data processor, it must be specified that the measures referred to in the aforementioned Article 89 must be adequate and specific, not just related to the confidentiality of the identity of the individual in the data processed by the processor. The other mentioned measures are common and minimal to any statistics or data collection: the content of the final database does not contain personal data, or the signature of the individuals accessing the information of a confidentiality agreement.

The aforementioned Article 9.2.j) specifies that the processing of these data must be "necessary for statistical purposes," and the particularities that the law of the Member State must contain must be "proportional to the objective pursued, essentially respect the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject." From the analysis of the aforementioned youth and Balearic statistical laws, it cannot be inferred that in relation to this survey, the necessity for the realization of statistics has been normatively contemplated in the first place, and in the second place, that it included special category data as treated in the mass survey that groups several differentiated categories within the special category of data, with the guarantees provided in Article 89 of the GDPR.

It must be taken into account that if, on the contrary, the circumstances for lifting the exception to the processing contemplated in Article 9.2.j) of the GDPR were to occur, it would imply the necessity for its processing and the consequent enabling of the

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even if the basis of Article 6.1(e) of the GDPR argued by IBOVE were fulfilled. Nevertheless, it must be taken into account that, for the moment, the survey is voluntary, and some questions related to such data are voluntarily answered, also considering the limitation established by the Spanish Constitution in its Article 16.1 and 2, which states that:

“Freedom of ideology, religion, and worship of individuals and communities is guaranteed without any limitation, in their manifestations, other than that necessary for the maintenance of public order protected by law.

2. No one may be compelled to declare their ideology, religion, or beliefs.”

Therefore, it would not seem to be a circumstance, as alleged, that could lift the aforementioned prohibition on the processing of such data.

It is not considered that the specific legislative provisions allowing the processing of various special category data in the youth survey of the Balearic Islands are sufficient to lift the prohibition on the exception for the processing of such data for the realization of the aforementioned statistics. Since a valid exception that lifts the prohibition on these special category data for their processing has not been implemented, it is appropriate to indicate the infringement of the aforementioned Article 9.1 of the GDPR by its data controller, IBJOVE.

VI Unfulfilled Obligation - Article 13 of the GDPR

The survey conducted by the complaining party does not contain any information regarding the processing of personal data.

The principle of transparency in data protection generates trust in processes that affect citizens and is an expression of loyalty concerning their processing. According to Article 5.1(a) of the GDPR:

“Personal data shall be [...] processed lawfully, fairly, and in a transparent manner in relation to the data subject.”

Transparency is also linked to the principle of proactive responsibility of the GDPR. Furthermore, from Article 5, paragraph 2 of the GDPR, it can also be inferred that data controllers must always be in a position to demonstrate that personal data is processed transparently in relation to the data subject.

In addition, the principle of proactive responsibility requires that processing operations be transparent so that data controllers can demonstrate compliance with their obligations under the GDPR.

Recital 39 of the GDPR states:

“For natural persons, it should be clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed. The principle of transparency requires that all information and communication relating to the processing of such data be easily accessible and easy to understand, and that clear and plain language be used. This principle particularly refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as the additional information necessary to ensure fair and transparent processing with respect to the affected natural persons and their right to obtain confirmation and communication of the personal data concerning them that is being processed [...]”.

Article 13 of the GDPR specifies the obligation required of the data controller when collecting data from the data subject, and states:

“1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

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- b) the existence of the right to request from the data controller access to the personal data concerning the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability;
 - c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
 - d) the right to lodge a complaint with a supervisory authority;
 - e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
 - f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information in accordance with paragraph 2.
4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

Regarding the timing of providing this information, Article 13 states that the information must be provided “at the time when the personal data are obtained.”

The obligation to inform about the data collection legally rests with the data controller, and even its fulfillment derived from an agreement between the parties is not binding for the AEPD.

However, it is stated in the data processing agreement signed between IBOVE and APLICA in clause 4.11 on the right to information that “It is the responsibility of the controller to provide the right to information at the time of data collection,” without any additional clause. The requirement for such an information obligation for the data controller derives from Article 13 of the GDPR as a guarantee for the processing of personal data of the data subjects, regardless of agreements, conventions, contracts, or any mechanism that may be understood as a transfer of the fulfillment of such obligation, which would only produce effects in

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in this case between the parties. To this effect, IBOVE should have ensured that the data collection for the survey was properly informed before authorizing it, materially complying with the content specified in Article 13 of the GDPR. This circumstance did not occur in this case, where even when the form with the survey was launched, it did not notice its lack, as evidenced by the fact that on 25/01/2023, IBOVE asked in the email, “I need to confirm if the informative clause that you find in the thread of this attached email and that was sent to you on 4/05/2022 was included in the survey,” without verifying this crucial aspect of the survey carried out as the data controller, which affected a minimum of THREE THOUSAND PEOPLE. This action reveals a lack of diligence in fulfilling its obligations and implies the responsibility of the aforementioned IBOVE.

In response to the allegation from IBOVE's proposal that it indeed had the information available and covered, but it was a punctual error, it should be noted that out of the three thousand surveys conducted, none included such information, and as the data controller, it is responsible for complying with the obligations set forth in the GDPR and the LOPDGDD. IBOVE, as the data controller, must

ensure that the data processor complies with what is entrusted to it. Although in this case, the contract for the assignment indicated, in accordance with the regulation, the obligation to inform by the data controller, subsequently, there was an email communication dated 4/05/2022 in which IBOJOVE sent the processor the informative clause that it had drafted. However, for IBOJOVE, it cannot hide behind the fact that the data processor forgot when the mandatory review for its controller fails, which constitutes another milestone of enforceability in the processing of data for compliance with the requirements of the data processing of the first youth survey of the Balearic Islands, having to have reviewed that the requirement was met, thus such an allegation cannot be accepted.

Furthermore, from the content of the aforementioned clause, it results:

- The “contact details of the data protection officer, if applicable” are not included.
- The additional information that appeared on <http://infojove.caib.es> was indicated only for the purpose of exercising rights.
- It fails due to lack of information, Article 13.2.e) “if the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and if the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data,” given that it only informed about the obligation to carry out the official survey, omitting the consequences.
- It is incomprehensible given the vagueness in the data retention period, as it states that “Personal data will be maintained as long as the link with the entity is maintained or for the years necessary to comply with legal obligations.”

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- It must adapt the part of the legitimizing basis that lifts the prohibition on processing special category data.

Circumstances that must be taken into account in the future drafting of the information clause for data collection.

Considering that the respondent did not proceed to carry out the information derived from Article 13, it is considered that it has infringed said article.

VII Classification and qualification of the infringements

Article 83.5 of the GDPR states:

“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22.”

The LOPDGDD indicates in its Article 71:

“Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 of the LOPDGDD states:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

[...]

“e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law occurring.”

[...]

h) “The omission of the duty to inform the affected party about the processing of their personal data in

accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

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VIII Sanction

Article 83 "General conditions for the imposition of administrative fines" of the GDPR in its paragraph 7 states:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Furthermore, Article 77; "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides as follows:

"1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

[...]

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

d) Public bodies and entities of public law linked to or dependent on the Public Administrations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities."

IX Publication of the sanctioning resolution

Regarding the allegations made by IBOVE that have been addressed in the different sections according to their relation to the part in which they are incorporated and with which they relate, in order not to diversify and mix different aspects, it is appropriate to dedicate this section exclusively to one in particular that does not easily fit into other grounds.

This concerns the request from IBOVE as part of its allegations to the proposal, that "in the event of being sanctioned, no publicity should be given to it without anonymizing the name of the entity, due to the repercussions that as an institution at the service of citizens may arise," it should be noted:

The interpretation of the request should be understood as meaning that the name of the sanctioned entity, responsible for the infringement, should be published anonymously, which would also require indirectly anonymizing an unknown number of circumstances and details of information so that the

entity would not be known directly or indirectly as the responsible author of the processing carried out. The underlying obligation is established by Article 50 of the LOPDGDD, which states:

"The Spanish Agency for Data Protection shall publish the resolutions of its Presidency that declare whether or not to attend to the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679, those that conclude sanctioning procedures and warning procedures, those that archive prior investigation actions, those issued regarding the entities referred to in Article 77.1 of this organic law, those that impose precautionary measures, and any others provided for in its Statute."

Expanding on the above, Article 11 of Royal Decree 389/2021, of 1/6, which approves the Statute of the Spanish Agency for Data Protection, regarding transparency and publicity, indicates that:

"1. The Spanish Agency for Data Protection shall publish on its website the resolutions of its Presidency that declare whether or not to attend to the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, those that conclude complaint procedures, those that archive prior investigation actions, those that sanction with a warning the entities referred to in Article 77.1 of Organic Law 3/2018, of December 5, and those that impose precautionary measures."

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2. Without prejudice to the provisions of Law 19/2013, of December 9, on transparency, access to public information, and good governance, all information that the Presidency considers relevant and that contributes to the better fulfillment of its functions shall also be published on the website.

It is therefore clear that there is a legal obligation for the AEPD to publish the resolutions that conclude a sanctioning procedure.

Furthermore, it should be noted that the mere publicity of the resolution does not constitute an administrative sanction, as the Courts have repeatedly stated, but rather a mere compliance with the Law, in accordance with the provisions of Article 50 of the LOPDGDD and Article 11 of the AEPD Statute.

In this regard, the ruling of the AN of January 13, 2022, stated that,

"Thus, in the case at hand, the challenged sanctioning resolution is published, under the protection of Article 50 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, which provides: 'The Spanish Agency for the Protection of Data shall publish the resolutions of its Presidency that declare whether or not there is a basis for addressing the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679, those that conclude complaint procedures, those that archive prior investigation proceedings, those that sanction with a warning the entities referred to in Article 77.1 of this organic law, those that impose precautionary measures, and others that its Statute provides.'

That is to say, the aforementioned provision obliges the Spanish Agency for the Protection of Data (hereinafter AEPD) to make its resolutions public once they have been notified to the interested parties. Therefore, the suspension of the publication of the sanctioning resolution on the AEPD's website must be rejected, as there is a public interest in publicizing the resolutions of the AEPD on its website, with the aim of preserving the transparency of the AEPD's activities and, ultimately, the protection of the right to data protection through knowledge of the criteria for applying data protection regulations. It should be recalled, as noted by the ruling of the Supreme Court, Chamber 3, of March 31, 2015, that 'the Public Administration acts under a regime of publicity of its acts in general and, specifically, all the more so as established by the regulatory norms of each sector of the legal system...'

In the same vein, regarding the jurisprudence on requests for precautionary measures and the publication of sanctioning resolutions, among others, the ruling of the Supreme Court of March 31, 2015, Section 2, Appeal: 73/2015, should be cited, taking into account the various resolutions mentioned in that ruling. It states,

"FIRST.- The commercial entity 'Western Union Payment Services Ireland Limited (WUPSIL)' requests

in this incident the adoption of the precautionary measure 'consisting of the suspension of the enforceability of the public warning sanctions' imposed in the Order of the Ministry of Economy and Competitiveness of December 2, 2014, for the commission of a serious infringement, and in the Agreement of the Council of Ministers of December 12, 2014, for the commission of an infringement."

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very serious, in the area of prevention of money laundering. The appellant entity restricts its request for suspension to the reprimand sanctions, without extending its petition or making allegations regarding the suspension of the economic sanctions, about which it shows no interest in precautionary measures.

SECOND.- Our analysis being thus limited to the suspension of the publicity of the public reprimand sanctions imposed by the Council of Ministers for the commission of a very serious infraction, the appellant entity asserts that the precautionary measure is warranted since the execution of the sanction would undermine the purpose of the appeal, given the reputational damage that the entity would suffer - it is claimed - which would affect its payment service relationships with credit entities and its relationships with its current clients and agents, given the seriousness of the alleged conduct, whose sanction is deemed , to which it adds the non-existence of disturbance of general interests and of third parties, the passage of several years since the sanctioned conduct, and the strengthening of internal control to prevent similar situations in the future.

Well then, the proposal for the precautionary measure cannot be accepted. As we have repeatedly stated in this regard (among others, in the Judgment of November 14, 2002 -RC 8351/1999 - and in those cited therein, and in the Orders of February 17, 2010 PMC 613/2009 with reference to the Order of May 4, 2005), the Public Administration acts under a regime of publicity of its acts in general and, specifically, as much as established by the regulatory norms of each sector of the legal system.

Specifically, the Legislator has intended through Law 19/1993, on measures for the prevention of money laundering (Article 12.2), that the publicity of the sanctions imposed on financial entities in this area adheres to the provisions of Law 26/1988, of July 29, on the Discipline and Intervention of Credit Entities. A law whose Article 27.5 states that sanctions for very serious infractions will be published in the Official State Gazette once they are final. The firmness referred to in the legal provision is that which occurs when the administrative route has been exhausted, as is the case here. Such legislative decision corroborates that there is an undeniable public interest in the aforementioned publication, which moreover does not reveal any information that should remain concealed, since the sanctions imposed on credit entities or on those who hold administrative or managerial positions in them must also be communicated to the immediate Board or General Assembly that is held, which also implies the general publicity of those. The publication of the sanctioning resolution thus serves the public interest and is mandatory by legal mandate. We have ruled out in previous judgments on this same issue that the mere publication of the sanctioning agreements has, in itself, the irreversible character that would warrant the adoption of the precautionary measure so as not to deprive the process itself of meaning: the publication of a potential favorable ruling on the merits, or the mention that the imposed sanction is still subject to judicial appeal, is sufficient to prevent those alleged irreversible effects. (...)

The thesis cannot be accepted since, as we have already indicated on various occasions, (for all, ATS of February 17, 2010, R. 613/2009) transparency in financial markets and even the interests of current and potential clients do not reconcile with the concealment of a relevant fact such as that the supervisory authorities have sanctioned, after a contradictory procedure, a certain entity.

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conduct in banking activities as carried out. There is a clear public interest in making such facts known

to the market, as they correspond to firm administrative decisions preceded by an analysis of the conduct by the supervisory bodies, with the intervention of the sanctioned entity. If the thesis of the appellant were accepted, it would imply that any publicity regarding the sanction imposed on a financial entity for violations related to the prevention of money laundering could eventually have those effects. The nature of the alleged infringement and the nature of the admonition do not necessarily have to irreversibly affect the interests of the admonished entity. Moreover, as we indicated in the Order of March 13, 2009 (PMC 21/2009), to the reasons stated, it can be added that, to avoid the consequences that it fears may occur, it can always argue that the imposed sanction is not judicially firm, to the extent that it is subject to the present contentious administrative appeal before this Chamber, which must eventually rule on its legality through the corresponding final judgment.

THIRD. - Consequently, it is appropriate to reject the requested precautionary measure, (...)."

Thus, the request made by IBOVE to anonymize its identity in the resolution cannot be granted.

Therefore, in accordance with the applicable legislation,
the Presidency of the Spanish Agency for Data Protection

RESOLVES

FIRST: TO DECLARE that the BALEARIC YOUTH INSTITUTE, with NIF Q0700516H, has infringed the provisions of Articles 9.1 and 13 of the GDPR, in accordance with the provisions of Articles 83.5 a) and 83.5.b) of the GDPR, and classified for the purposes of its prescription as very serious under Articles 72.1.e) and 72.1.h) of the LOPDGDD.

SECOND: TO NOTIFY this resolution to the BALEARIC YOUTH INSTITUTE.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

FOURTH: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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